

23STCV31192 23STCV31192

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SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES

Sibrel

v. The Misfit Restaurant, LLC, et al.

23STCV31192

Dept.

12 SSC

Hon. Carolyn B. Kuhl

Date of Hearing: July 13, 2026

Plaintiff Jacquelyn N. Sibrel's Motion

for Class Certification

Tentative Ruling: The unopposed Motion is granted. The court certifies the following class with respect to claims based on (1) Defendant's alleged failure to provide compliant meal periods, (2) Defendant's alleged failure to provide compliant rest breaks, and (3) Defendant's alleged failure to pay for off-the-clock work:

All persons who worked for The Misfit

Restaurant, LLC as hourly paid and/or non-exempt employees in the State of

California at any time from December 20, 2019 through the date of this order granting class certification.

Plaintiff filed this putative class action on December 20, 2023, alleging the following ten causes of action: (1) Failure to Pay Overtime Wages; (2) Failure to Pay Minimum Wages; (3) Failure to Provide Compliant Meal Periods/Premiums; (4) Failure to Provide Compliant Rest Periods/Premiums; (5) Failure to Pay Wages During Employment; (6) Failure to Timely Pay Wages Upon Termination; (7) Failure to Provide Compliant Wage Statements; (8) Failure to Maintain Requisite Payroll Records; (9) Failure to Reimburse Necessary Business Expenses; and (10) UCL. On June 26, 2025, Plaintiff filed the First Amended Complaint, which added a PAGA cause of action.

On August 22, 2025, Plaintiff filed the instant Motion. Plaintiff moves to certify a class of “all persons who worked for The Misfit Restaurant, LLC (‘Defendant’) as hourly paid and/or non-exempt employees in the State of California at any time from December 20, 2019 through the date of the order granting class certification ...” (Pl’s Not. Mot., at p. 2.) Plaintiff seeks to certify this class in order to litigate (1) meal break claims, (2) rest break claims, (3) claims for unpaid wages for off-the-clock work, and (4) claims that are derivative of the first three types of claims. Because Defendant operates a single restaurant location in Santa Monica, California, the class is limited to employees working at that restaurant. (See Pl’s Ex. 12, at p. 6.)

On March 23, 2026, the court held a further status conference regarding Plaintiff’s Motion. Defense counsel appeared at the status conference, but Plaintiff’s counsel did not appear. The court set the Motion for hearing on July 13, 2026. The court’s Minute Order states: “The Motion will be unopposed.” (Minute Order, Mar. 23, 2026.)

Defendant has not filed any opposition to the Motion.

Discussion

Plaintiff has adequately demonstrated that class certification is appropriate.

The class, as defined, is sufficiently numerous and

ascertainable. The class is defined in terms of objective criteria, especially because the class covers employees of just a single restaurant. And Plaintiff has already determined from Defendant's discovery that there are well over 200 putative class members. (Pl's Ex. 12, at p. 3.) Furthermore, Defendant has records of the names of its current and former employees.

Plaintiff has also presented sufficient evidence to demonstrate that common questions of law and fact predominate, and that Plaintiff's own claims are typical of those of the class. (See *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.) Plaintiff contends that the alleged Labor Code violations occurred with respect to all class members as a result of Defendant's uniform policies and practices at the restaurant in Santa Monica. Plaintiff herself attests that her own experiences as an employee were the same as those of the putative class members. (See Pl's Ex. 14, ¶¶ 3-20.)

With respect to meal period violations, Plaintiffs contends that "Defendant's time and pay records demonstrate Defendant systematically failed to provide employees compliant meal breaks." (Pl's Mot., at p. 8.) Plaintiff will attempt to prove liability by relying on her expert's analysis of Defendant's records, which suggests a high rate of violations. (See Pl's Mot., at p. 8, citing Plaintiff's expert report.) Moreover, despite the high rate of violations, Defendant has admitted that it only paid approximately 15 meal period premiums per year during the class period. (Pl's Ex. 12, at p. 10.) It is Plaintiff's position that Defendant's records thus raise a classwide presumption that meal breaks were not provided. (See *Donohue v. AMN Services, LLC* (2021) 11 Cal.5th 58, 61 ["time records showing noncompliant meal periods raise a rebuttable presumption of meal period violations, including at the summary judgment stage"].) By failing to oppose the Motion, Defendant has not showed that it would seek to overcome the presumption with individualized evidence.

The rest period claims can likewise be certified. It is Plaintiff's contention that Defendant had a common practice of failing to provide employees lawful rest breaks. Plaintiff's theory of liability is based on (1) the fact that the sole written rest break policy is only found in Defendant's "Employee Discount Policy," which explains that employees are entitled to a discount on food prepared at the restaurant.

(Pl's Ex. 8.) Plaintiff thus contends that class members were not made aware of their right to take compliant rest breaks. Plaintiff also argues that the written rest break policy found in the "Employee Discount Policy" is improper on a classwide basis because it "place[s] the onus on employees to affirmatively request rest breaks." (Pl's Mot., at p. 12, citing Pl's Ex. 8 ["It is the employee's responsibility to communicate their need for a rest break"].) Plaintiff attests that she and the other putative class members "were almost always too busy to take rest breaks due to the volume of work. It was part of the workplace culture not to take rest breaks, and there was pressure to continue working rather than step away." (Pl's Ex. 14, ¶ 18.) Other employees have offered the same testimony regarding the classwide failure to provide compliant rest breaks. (Pl's Ex. 15, ¶ 5.) Plaintiff could thus show that Defendant's restaurant-wide practices led to the failure to provide compliant rest breaks. Furthermore, Defendant has admitted that it did not pay putative class members rest break premiums. (Pl's Ex. 12, at p. 10.) Lastly, by failing to oppose the Motion, Defendant has not identified how any individualized issues might arise concerning the alleged failure to provide rest breaks.

Plaintiff has also shown that the theory of liability based on off-the-clock work can be adjudicated on a classwide basis. Plaintiff, relying on her expert's analysis of Defendant's records, contends that Defendant had a common practice of paying only for "scheduled hours," and not for actual hours worked. (Pl's Mot., at p. 13; Pl's Ex. 2, ¶¶ 22-25.) Plaintiff's expert concludes from the records that "payments were based on shift start and end times as opposed to the employees' actual time punches," and that this resulted in a failure to pay for all time worked. (Pl's Ex. 2, ¶ 22.) Plaintiff also relies on declarations by putative class members that could be used to show that Defendant operated the restaurant in a way that routinely caused putative class members to perform off-the-clock work. (See, e.g., Pl's Ex. 14, ¶¶ 3-7; Ex. 19, ¶¶ 3-4.)

Finally, Plaintiff has shown that she and her counsel can adequately represent the putative class. Plaintiff's counsel has substantial experience litigating class actions. (Pl's Ex. 1, ¶¶ 22-33.) And Plaintiff has shown that she is willing and able to litigate on behalf of other non-exempt employees. (Pl's Ex. 1, ¶ 36.)